

Court No. - 32

Case :- WRIT - C No. - 27507 of 2018

Petitioner :- Tuni

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Atul Kumar

Kushwaha, Ray Sahab Yadav

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of mandamus commanding the respondents to connect electricity power of the petitioner forthwith.

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondents to issue fresh correct electricity bill to the petitioner as due against him for 1 KW at the fixed rate of Rs.160/- by adjusting the amount already paid by the petitioners.

(iii) Issue a writ, order or direction in the nature of mandamus commanding the respondents to consider and decide the objection dated 24.07.2018 filed by the petitioner to the Department concerned within stipulated time. "

Heard learned counsel for the petitioner, Mr. Pawan Kumar Mishra holding brief of Mr. Pranjal Mehrotra, learned counsel for the respondents- Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition

for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority within 15 days by a speaking order.

Till the disposal of the application of the petitioner, the electricity supply of the petitioner shall not be disconnected provided the petitioner files an application within stipulated period as stated herein above.

The Writ Petition is accordingly disposed of.

Order Date :- 14.8.2018

Arun